Montgomery County District Court

Cause No. 2026-CV-0031

Bradley Chavez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	6-13-26
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant, subject to and without waiving the right to assert any defense, generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof as required by the Texas Rules of Civil Procedure.

For further answer, and by way of affirmative defense, Defendant asserts that Plaintiff's own negligence proximately caused or contributed to the occurrence in question, including by failing to keep a proper lookout, failing to conrtol speed, or stopping suddenly without adequate warning. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributable to Plaintiff, and Plaintiff may be barred from recovery if that percentage ecxeeds fifty percent.

Defendant further asserts that the injuries and damages claimed were not proximately caused by the collision, but were pre-existing, degenerative, or resulted from an unrelated subsequent event, and that Plaintiff failed to mitigate damages by unreasonably delaying or forgoing recommended medical treatment.

Defendant also invokes its right to a credit or offset for any settleemnt amounts paid to Plaintiff by any other person or entity for the same injuries, as provided under Texas law.